

CONFIDENTIALITY AGREEMENT (NON-DISCLOSURE AGREEMENT — NDA)

Date: 18-11-25

Between:

(A) _____,

a company incorporated under the laws of _____,

RUT/ID _____,

with registered office at _____,

represented by _____,

(hereinafter, the “Disclosing Party”).

(B) Miner Global Connect SpA (MGC),

a company incorporated under the laws of Chile,

RUT 78.264.736-9,

registered office at Monjitas #513, office 11, Santiago – Chile,

represented by Robinson Sixto Godoy Cuchacovich, CEO,

(hereinafter, the “Receiver” or “MGC”).

Collectively, the “**Parties.**”

1. BACKGROUND AND PURPOSE

1.1. The Parties wish to hold discussions and evaluate a potential commercial and/or representation relationship relating to the marketing of minerals (the “**Purpose**”).

1.2. The Disclosing Party may provide confidential technical, commercial and financial information, which shall be governed by this Agreement.

2. DEFINITIONS

2.1. “**Confidential Information**” includes all information provided by the Disclosing Party, whether oral, written, digital, graphic, or otherwise, including: business plans, buyer lists, prices, model contracts (SCO, FCO, SPA), LOIs, technical data (assays, lab results), stock records, coordinates, videos, legal documentation, financial data, know-how, and any information marked or understood as confidential.

2.2. “**Authorized Representatives**”: employees or advisors of the Receiver who need to know the information and are bound to confidentiality.

2.3. “**Technical Package**”: documents described in Annex A.

3. OBLIGATIONS OF THE RECEIVER

- 3.1. Use the Confidential Information solely for the Purpose.
- 3.2. Maintain strict confidentiality and disclose only to Authorized Representatives.
- 3.3. Apply security measures equivalent to its own confidential information.
- 3.4. Not use Confidential Information to bypass the Disclosing Party or negotiate directly with introduced contacts (non-circumvention).
- 3.5. Ensure Authorized Representatives comply with confidentiality.
- 3.6. Notify any unauthorized disclosure and cooperate in mitigation.

4. EXCEPTIONS

Information is not confidential if:

- (a) it becomes public without breach;
- (b) it was already known lawfully;
- (c) received legally from a third party;
- (d) independently developed;
- (e) required by law (with prior notice to Disclosing Party).

5. NON-CIRCUMVENTION & NON-SOLICITATION

- 5.1. The Receiver shall not bypass or contact sellers, buyers, mandates, suppliers, or any party introduced by the Disclosing Party without written authorization, for **5 years**.
- 5.2. The Receiver shall not solicit employees of the Disclosing Party for **12 months**.

6. DURATION

Confidentiality remains valid for **5 years** after the last disclosure.
Non-circumvention remains valid for **5 years**.

7. OWNERSHIP

Confidential Information remains property of the Disclosing Party.
No licenses or rights are granted unless in writing.

8. RETURN / DESTRUCTION

Upon written request, the Receiver must return or destroy all Confidential Information and certify destruction.

9. DIGITAL SECURITY

Information may be stored in a secure repository (Google Drive, Dropbox, etc.).
Receiver agrees to two-factor authentication if requested.

10. LIABILITY

Receiver is responsible for any misuse or unauthorized disclosure.

11. LIMITATION OF LIABILITY

No indirect damages or lost profits, except in cases of intentional breach.

12. NOTICE OF NON-COMPLIANCE

Receiver must notify the Disclosing Party if third-party information appears to match Confidential Information.

13. GENERAL PROVISIONS

13.1. **Governing Law:** Chile.

Disputes shall be resolved through **International Arbitration** (ICC or similar).

13.2. **Notifications:**

– Disclosing Party: _____

– MGC: info@minerglobalconnect.com / godoycuchacovich@gmail.com

13.3. Assignment only with written consent.

13.4. Invalid clauses shall not affect the remaining provisions.

13.5. Entire agreement supersedes previous ones.

13.6. Amendments only in writing.

14. ANNEX A — Technical Package

May include:

SCO, LOI, assays, SGS/Mitra/Intertek reports, stockpile videos & photos, coordinates, export permits, certificates of origin, BL history, corporate documents, mandate letters, etc.

15. SIGNATURES

By the Disclosing Party:

Name: _____

Position: _____

Signature: _____

Date: _____

By Miner Global Connect SpA (MGC):

Name: Robinson Sixto Godoy Cuchacovich

Position: CEO

Signature: _____

Date: _____